CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, July 24, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Vice Mayor Chris Davis called the meeting to order at 7:00 p.m. on Wednesday, July 24, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Vice Mayor Chris Davis, Commissioner Sherelean Bass, and Commissioner Joseph L. Kelley. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores. Mayor Matthew A. Pigatt was not in attendance.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-2 and 13-3 (Commissioner Kelley).

NEW ITEM(S):

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXTEND THE CURRENT SOLID WASTE COLLECTION AND DISPOSAL FRANCHISE AGREEMENT WITH GREAT WASTE, INC., AND WASTE MANAGEMENT, INC., OF FLORIDA, FOR A MONTH TO MONTH PERIOD TO ALLOW THE PROCUREMENT PROCESS TO BE COMPLETED; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Clerk Flores.

It was moved by Commissioner Kelley, seconded by Commissioner Bass to amend the agenda to include item 14-1.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AN EMERGENCY AMENDMENT BETWEEN INTERCOUNTY ENGINEERING, INC., AND THE CITY OF OPA-LOCKA, FLORIDA, UNDER THE SAME TERMS AND CONDITIONS AS THE PRIOR AGREEMENT ENTERED INTO BETWEEN THE PARTIES WITH AN EFFECTIVE DATE OF MAY 26, 2015 INCLUDING AMENDMENTS; TO INCREASE THE CONTRACT AMOUNT BY FIVE HUNDRED AND TWO THOUSAND DOLLARS ($502.000.00) FOR THE PROVISION OF ROAD WORK RELATING TO CAIRO LANE AND NW 127TH STREET IN THE CITY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Clerk Flores.

It was moved by Commissioner Kelley, seconded by Commissioner Bass to amend the agenda to include item 14-2.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

7. APPROVAL OF AGENDA:

It was moved by Commissioner Kelley, seconded by Commissioner Burke to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – June 26, 2019

It was moved by Commissioner Bass, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of June 26, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara J. Jordan's Office, District I, told Commissioner Kelley he sent a letter to the city clerk on yesterday referencing the illegal dumping.

Commissioner Kelley acknowledged that he did receive it and requested that the clerk pass it on to the rest of the commission.

Louis Antoine, Commissioner Jean Monestime's Office, District II, said the commissioner sent his thanks to those who attended the Mango Festival last Saturday at Oak Grove Park. He also announced a Back to School event to be held on Friday, August 9, 2019 at New Jerusalem Baptist Church, 777 NW 85th Street, Miami, Florida.

Commissioner Kelley thanked the county commissioners for sending representatives and requested that District II keep the City in mind if additional funding is available for the flooding over at Ingram Terrace Apartments.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Sharon Roberson, 13134 Port Said Road, Opa-locka, FL, said anything that is place in the City where jobs are concerned needs to involve the residents. Young people are graduating from high school and cannot find jobs in the City and they need something to do.

Dwight Smith, 13006 Alexandria Drive, 3208, Opa-locka, Florida, agreed with the previous citizen and asked that jobs are put into the community for the youth who are of age.

Mark Hall, 13006 Alexandria Drive, Opa-locka, FL agreed with the two previous citizens and asked that jobs are provided to the youth who are residents of the City.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, said she has been reviewing the "99 Findings" and sees that a lot of the issues are regarding policy and procedures. She told the manager that he has not been the manager throughout all of the issues, but he has been in the City long enough to know what needs to be done. She questioned the hiring of 23 employees

from 2015-2017 where some of them were hired with no applications on file, some did not take drugs tests until after employment, some Public Works employees were hired without the necessary certifications for their positions.

Jasmine (Inaudible), 13131 Port Said Road, Opa-locka, FL, said she has lived in the City all of her life and she cannot find a job in the City where she lives and has to go out to other cities to find work. She said when the commission wanted to be elected, they came to everyone's homes and promised jobs, but when they came into office it never happened. She asked that the City look into creating jobs so she and others can find employment close to home.

Vince Bennett said he is there on behalf of his nephew who lives in Opa-locka. He said the commissioners did promise jobs to residents while they were campaigning and it was a campaign promise that never happened. He said Amazon was not the answer; and asked that the City makes it right for the residents in Opa-locka and support the businesses that bring in jobs.

Natasha Ervin, 670 Dunad Avenue, Opa-locka, FL, said the field near Golf Drive is a mess and something needs to be done. She is unsure if it is a Code Enforcement issue, but the City needs to look into it. Whoever owns the property needs to be held accountable. She said if there are jobs coming into the City, that it is afforded to the residents. Lastly, she asked that Antanette Mitchell receive the scholarship money in a timely manner because sometimes it takes the city a long time to act on certain things.

Taroni Mitchell, 14225 NW 22nd Place, Opa-locka, FL, said there is a lot of flooding on her street and asked that the commission look into the matter. She said she is also championing for her daughter Antanette Mitchell who has volunteered with the City for years to receive her scholarship money.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she is also in agreeance with providing the scholarship money to Ms. Mitchell. She said she just brought her mother's car here and it already needs an alignment because the streets are bad and something needs to be done. There is a commissioner that makes snide remarks whenever she is speaking and is saying she is bossy, but she is not bossy, she is accountable. She also said most of the commissioners never return calls from the residents and called out Commissioner Kelley and Commissioner Bass as being the only ones who do return calls.

Marcelo Parreno, Republic Packaging, 4570 NW 128th Street, Opa-locka, FL, said the company he is representing does not want the trucking company to come into their area. He said the overnight parking of the trucks will lead to sleeping on site, loitering, and crime in the area which could harm the employees.

Commissioner Kelley asked that the items from the consent agenda be passed first so the resident who is receiving the scholarship award does not have to remain at the meeting all night.

12. ACTION ITEMS:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, SETTING THE PROPOSED BUDGET FOR THE CITY OF OPA-LOCKA, FLORIDA, AS REQUIRED BY THE STATE AND LOCAL AGREEMENT OF COOPERATION BETWEEN THE GOVERNOR AND THE CITY OF OPA-LOCKA,

FOR FISCAL YEAR 2019-2020; ESTABLISHING REQUIREMENTS FOR THE APPROVAL OF THE CITY BUDGET ON OR BEFORE AUGUST FIRST OF EVERY YEAR TO THE GOVERNOR THE PROPOSED ANNUAL BUDGET OF THE CITY, AS PRELIMINARY APPROVED BY THE MAYOR AND CITY COMMISSION FOR FY 2019-2020; AND DIRECTING THE CITY MANAGER TO FORWARD A COPY OF THIS RESOLUTION AND APPROVED PROPOSED BUDGET TO THE GOVERNOR; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley told the manager he received his July 24th memo and asked if the budget was balanced.

Acting City Manager Daughtrey said, "Yes Sir".

Commissioner Burke and Vice Mayor Davis also asked the manager if the budget was balanced to which the manager said, "Yes Sir".

There being no discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, INCREASING THE SALARY RANGES FOR THE CITY MANAGER AND THE FINANCE DIRECTOR; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said he saw the item and he has mixed emotions with it. He knows the search for the city manager is exhaustive and commended the current manager for taking the steps for this increase. He hopes all of the employees will be afforded this opportunity in the future.

Commissioner Burke asked the manager if this salary is being requested for the incoming city manager.

Acting City Manager Daughtrey said it is for the new city manager. They have had challenges with the two positions and no one is willing to come for the rate that the City is offering.

Vice Mayor Davis asked if the amount has a fiscal impact.

Acting City Manager Daughtrey said, "No", because he is not currently being paid at that rate.

There being no further discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, SETTING THE PROPOSED MILLAGE RATE OF 9.8 OF AD VALOREM TAXES FOR THE CITY OF OPA-LOCKA, FLORIDA, AS REQUIRED BY LAW, FOR THE BUDGET FOR FISCAL YEAR 2019-2020; ESTABLISHING THE DATE, TIME AND PLACE FOR THE FIRST AND FINAL PUBLIC HEARINGS TO CONSIDER THE PROPOSED MILLAGE RATE AND TENTATIVE BUDGET FOR FY 2019-2020; AND DIRECTING THE CITY MANAGER TO FORWARD A COPY OF THIS RESOLUTION TO THE MIAMI DADE COUNTY PROPOERTY APPRAISER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AWARDING A ONE THOUSAND DOLLAR ($1,000.00) SCHOLARSHIP TO ANTANETTE MITCHELL THROUGH THE EDUCATIONAL SCHOLARSHIP PROGRAM, AS SET FORTH IN EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above resolutions were read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to pass the resolutions.

The motion on the resolutions passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

A scholarship award check was presented to Ms. Antanette Mitchell for graduating from high school and going off to college. She was also commended for the many hours she has volunteered with the City.

14. NEW ITEMS:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXTEND THE CURRENT SOLID WASTE COLLECTION AND DISPOSAL FRANCHISE AGREEMENT WITH GREAT WASTE, INC., AND WASTE MANAGEMENT, INC., OF FLORIDA, FOR A MONTH TO MONTH PERIOD TO ALLOW THE PROCUREMENT PROCESS TO BE COMPLETED; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to pass the resolution.

There being no discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AN EMERGENCY AMENDMENT BETWEEN INTERCOUNTY ENGINEERING, INC., AND THE CITY OF OPA-LOCKA, FLORIDA, UNDER THE SAME TERMS AND CONDITIONS AS THE PRIOR AGREEMENT ENTERED INTO BETWEEN THE PARTIES WITH AN EFFECTIVE DATE OF MAY 26, 2015 INCLUDING AMENDMENTS; TO INCREASE THE CONTRACT AMOUNT BY FIVE HUNDRED AND TWO THOUSAND DOLLARS ($502.000.00) FOR THE PROVISION OF ROAD WORK RELATING TO CAIRO LANE AND NW 127TH STREET IMPROVEMENTS IN THE CITY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley asked the manager if the amount is approved tonight, if it will be the last payment for the project to be complete by the October 1st deadline.

Acting City Manager Daughtrey said, "Yes".

Vice Mayor Davis said this was a significant amount of money and asked the manager where it came from.

Acting City Manager Daughtrey said the funds are in the budget.

There being no further discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes

Commissioner Bass	Yes
Mayor Pigatt	Not Present

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE FINAL SITE PLAN REVIEW REQUEST BY CENTERPOINT PROPERTIES TRUST, TO CONSTRUCT A TRACTOR TRAILER TRUCK PARKING FACILITY ON THE VACANT LOT IDENTIFIED BY FOLIO 08-2129-018-0010 AND 30-2129-018-0010 IN THE I-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

Vice Mayor Davis opened the floor for a public hearing.

Planning & Community Development Director Gregory Gay said the project is located on the south end of the City to be utilized for truck parking. It is in the I-3 zoning district and not the I-2; that is an error in the resolution.

City Attorney Norris-Weeks said the item provides for scrivener's errors so she will make the changes to reflect the correction.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said staff should be prepared and not come before the commission with errors.

Michael Carr, 15150 NW 79th Court, Miami Lakes, FL, said he is representing the applicant and the error in the document reflected an extra zero on the folio number, but it has been corrected.

Ron Jacobowitz, 12815 NW 45th Avenue, #293, Opa-locka, FL, said he has been a business owner there for nine years and the flooding is terrible.

Vice Mayor Davis informed Mr. Jacobowitz that the item he is referring to has not been addressed at this time.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, said the project should bring in jobs for the residents in the City. She asked the commission to consider the item.

There being no further persons to speak, the floor for public hearing was closed.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.

Commissioner Kelley said the City needs to ensure the applicants adhere to the site plan as stated.

There being no further discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT WITH CENTERPOINT PROPERTIES TRUST TO CONSTRUCT A TRACTOR TRAILER TRUCK PARKING FACILITY ON THE VACANT LOT IDENTIFIED BY FOLIO 08-2129-018-0010 AND 30-2129-018-0010 IN THE I-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; AND PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

Mr. Gay said this is the developer's agreement in relation to the project that was just voted on. The stacking can be reduced from five to three or four if the commission desires. He is open to answering their questions at this time.

Commissioner Kelley said he did not see the minutes from the Planning Council Meeting, so he does not know if the conversation was had to provide jobs for the residents. Though it is not required, it is encouraged that this is discussed during this phase of the process.

Mr. Gay said he does not have the information with him, but the applicant is present and can speak to any recommendations regarding the hiring of residents.

Commissioner Kelley told the manager that if this happens again, he will not support any of it. All of the information should be presented at once so the commission can have the information for consideration. He asked Mr. Gay what was discussed among staff as far as job opportunities.

Mr. Gay said the point is known for the developer to go through Career Source so the residents can know they can apply and it is also inside the developer's agreement that job opportunities be made available for residents.

City Attorney Norris-Weeks said the language is in the agreement in the form of a memorandum of understanding and that is about as far as it can go legally.

Vice Mayor Davis opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL said the City should look at the City of Miami Gardens plans for construction and building. It is detailed and laid out and the City can add its own verbiage.

There being no further persons to speak, the floor for public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to pass the resolution.

There being no discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE FINAL SITE PLAN REVIEW REQUEST BY FLORIDA INDUSTRIAL PROPERTIES EIGHT, LLC., FOR THE CONSTRUCTION AND OPERATION OF A TRACTOR TRAILER TRUCK VEHICLE PARKING FACILITY ON THE PROPERTY LOCATED AT 4480 NW 128TH STREET ROAD IDENTIFIED BY FOLIO 08-2129-005-1470, 08-2129-005-1590, 08-2129-005-1600, 08-2129-005-1600, 08-2129-005-1610, AND 08-2129-005-1620 IN THE I-3 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

Mr. Gay said the item deals with truck parking facilities; it is currently a satellite communications space, but the new owners will be converting the property and it will eventually require a special exception.

Vice Mayor Davis opened the floor for a public hearing.

Hope Calhoun said she is representing the applicant and the item in question is specifically for approval of the site plan which will improve the area by providing buffering and landscaping.

Daniel Whitebook, 13449 NW 42nd Avenue, Opa-locka, FL, said the street that this is on is a very small street and has pothole and traffic issues. Also it is in a low lying area so there is heavy flooding to the roads which already have a lot of problems. Whoever is going to develop will need to improve the infrastructure in the area to maintain the integrity of the area.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she is not a lobbyist and is not lobbying for anyone, however she has some concerns about the item. She asked that the commission look at all of the information so they can make wise decisions.

Ron Jacobowitz, 12815 NW 45th Avenue, Opa-locka, FL, said the person that is petitioning for this property already has citations and violations at their other property and he thinks the same will happen here. Also he does not think people should be sleeping there overnight. He is against bringing the company to the property.

Frank Kreager, Carib Sales, 4500 NW 135th Street, Opa-locka, FL, said he also objects to the company because of all of the issues mentioned before and the selling of gasoline.

Paul Silverfarm, 12790 NW 42nd Avenue, Opa-locka, FL said he never received any notice for the project that went before the Planning & Zoning Board and concurred with the previous

speakers about all of the issues that exist on that street. He presented photos to the commission that shows the different issues.

Ms. Calhoun said there are petitions that are for the project based on the traffic studies that were conducted by the engineer and the commission has all of the information in their supporting documents.

There being no further persons to speak, the floor for public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Vice Mayor Davis said the zoning code permits this and he is for it at this time although he has concerns. They will address the other issues at a later date.

There being no further discussion, the motion on the resolution passed by a 3-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Out of Room
Mayor Pigatt	Not Present

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE SPECIAL EXCEPTION REQUEST BY FLORIDA INDUSTRIAL PROPERTIES EIGHT, LLC., TO ALLOW THE RETAIL SALE OF DIESEL GAS FOR THE OPERATION OF A TRACTOR TRAILER TRUCK VEHICLE PARKING FACILITY ON THE PROPERTY LOCATED AT 4480 NW 128TH STREET ROAD IDENTIFIED BY FOLIO 08-2129-005-1470, 08-2129-005-1600, 08-2129-005-1610, AND 08-2129-005-1620 IN THE I-3 ZONING DISTRICT; PROVIDING FOR APPROVAL, PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Mr. Gay said the item was not moved and did not receive a second by the Planning & Zoning Board, it was not considered and they were not in favor of bringing it to this particular location.

Vice Mayor Davis asked what issues were related to the retail sale.

Mr. Gay said the area is not conducive to the sale of the fuel because of where it is located.

Vice Mayor Davis opened the floor for a public hearing.

Ms. Calhoun said the area is an industrial area that provides the businesses in the area to get gas in their part of town without having to go out of their area to purchase gas. They have also attached petitions along with the backup for the item by people who are in favor of the project. She said the engineer can also provide insight on the project.

Glen Hanks, Engineering Consultant, 7522 Wiles Road, Coral Springs, FL, said the site is designed to accommodate local users who already travel in the area regularly and will not affect the roads as a result of the property.

John Riley, 2963 NW 131st Street, Opa-locka, FL, said he supports the item because it has opportunities for jobs and should be approved by the commission.

Mr. Jacobowitz said the I-3 zoning district for that area states that the fuel should be used for the owner and not for retail sale. The traffic study is also not related to what the usage states. The majority of the space will be used for storage and there are no jobs in storage. He also asked the commission why they have not discussed the lodging that will take place at the site.

Daniel Whitebook, 13449 NW 42nd Avenue, Opa-locka, FL, said he spoke to all of the people in the area and they are all against the project so he is not sure where this petition came from. Also the area is designed for industrial and not retail.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she misspoke the last time, but she was under another impression about the special exemption. She asked the commission to look at Municode and see what it says about building in that area. She said she is not lobbying and no one is paying her to speak on the item.

Marcelo Perano, 4570 NW 128th Street, Opa-locka, FL, apologized for attempting to speak on a previous item pre-immaturely. He is the immediate neighbor next door and he is concerned about the traffic because his employees are already complaining. As of now, when it rains the area is completely under water. Having a fuel selling facility is not something they want in the area.

Paul Silverfarm, 4300 NW 128th Street, Opa-locka, FL, said he is a property owner in the area and he and the owners near him are not in favor of this item.

Frank Kreager, Carib Sales, Opa-locka, FL, said he is also against both resolutions and his fellow business owners do not favor the project either.

There being no further persons to speak, the floor for public hearing was closed.

Commissioner Burke said he is confused because there is a memorandum from June which was supposed to be sent to the commission, but they're just now receiving the recommendation.

Mr. Gay said he is not aware of this and maybe it was worded differently.

Vice Mayor Davis said he does not recall seeing the document in question.

Commissioner Kelley said he read something to that effect, but it mentioned what it was in regards to and not the actual approval.

Vice Mayor Davis said that while he likes to support new projects in the City, he has never seen this level of opposition regarding an item and the City needs to look in to the infrastructure closely. At this time he cannot support the item.

There being no discussion, the motion on the resolution failed by a 3-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	No
Commissioner Kelley	No
Commissioner Bass	No
Mayor Pigatt	Not Present

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OFOPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT BY FLORIDA INDUSTRIAL PROPERTIES EIGHT, LLC., FOR THE CONSTRUCTION AND OPERATION OF A TRACTOR TRAILER TRUCK VEHICLE PARKING FACILITY ON THE PROPERTY LOCATED AT 4480 NW 128TH STREET ROAD IDENTIFIED BY FOLIO 08-2129-005-1470, 08-2129-005-1590, 08-2129-005-1600, 08-2129-005-1610 AND 08-2129-005-1620 IN THE I-3 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Vice Mayor Davis opened the floor for a public hearing.

Hope Calhoun stated that this is a standard developer's agreement and asked the commission to approve it so they can move forward.

Ron Jacobowitz said he sees that the commission voted no on the selling of retail gas, but asked the commission for clarity on if it is okay for the location to sell gas to the renter's on the property. He once again mentioned the lodging of people overnight that could be going on stating that the commission has still not addressed it.

Glen Hanks said the use of the facility is basically a truck depo and no one will be sleeping there overnight. The truckers live locally so they will be locking up the trucks and going home.

Daniel Whitebook said it was mentioned in the agreement that repairs to the infrastructure be made by the company to improve the substantial problems and impact to the area.

Dorothy Johnson asked who monitors all of this once everything is put in place. If there are already all of these infrastructure problems, then the commission should determine if this is something that won't fall back on them later.

Paul Silverfarm said he never received noticed for this and is concerned about the immediate impact to the street where he owns two properties.

Marcelo Perano, 4570 NW 128th Street, Opa-locka, FL, said he will only focus on the traffic at this time. He received information from the engineer that there will be trucks parked and the drivers will be using their vehicles to come and go. That means hundreds of extra cars on that road. He invited everyone to his office to have coffee on him so they can sit and see his point.

Frank Kreager, Carib Sales, Opa-locka, FL, said he did not receive any notice about the resolutions being discussed tonight and for the record he strenuously objects to all of the resolutions.

Ms. Calhoun said this is only to approve the developer's agreement and the owner of Carib Sales signed an objection letter on March 5th so he received the notice as well as the others.

Mr. Jacobwitz said only one person has been receiving the notices and forwarding them to everyone else; he has not received anything.

There being no further persons to speak, the floor for public hearing was closed.

Commissioner Kelley questioned the attorney about the new order of motioning, seconding, and then calling a public hearing. He asked for an explanation to be given at a later time. He also asked about the business owners saying they have not received notice of the public hearing items in question.

Mr. Gay said everyone in the area within three hundred and fifty feet of the location were properly noticed.

Commissioner Kelley asked if the verbiage can include no sleeping or lodging at the truck depot.

City Attorney Norris-Weeks said the wording in the item can be included through an amendment.

A motion was made to amend the item to include language that speaks to no lodging or sleeping at the site.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the amendment.

There being no further discussion, the motion on the amendment passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

There being no further discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ARROVING THE FINAL SITE PLAN REVIEW REQUEST BY SHAWN JIVANI C/O MIAMI OPA LOCKA BUSINESS PARK, LLC TO CONSTRUCT AN EIGHT STORY MIXED-USE COMMERCIAL/INDUSTRIAL BUILDING ON THE

PROPERTY LOCATED AT THE CORNER OF NW 147TH STREET AND NW 22ND AVENUE IDENTIFIED BY FOLIO 08-2122-025-0270 IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

Vice Mayor Davis opened the floor for a public hearing.

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley for discussion.

Mr. Gay said the developer wishes to construct a nine story facility at the site and staff has recommended approval for this project.

Vice Mayor Davis opened the floor for a public hearing.

Shawn Jivani, NW 147th Street and NW 22nd Avenue, Opa-locka, FL, said the office building is a mixed use facility and will include a medical school and a software space among other businesses. It will provide education for residents and is considered the wave of the future for years to come.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she is for the project, but hopes that adequate parking will be provided and people will not be parking on the side of the road.

There being no further persons to speak, the floor for public hearing was closed.

Commissioner Kelley said he received calls from residents and they also have concerns about parking. He asked Mr. Gay how it will impact the area since a nine story building is very high.

Mr. Gay said it exceeds the parking requirement for a building of this size.

Commissioner Kelley said he is concerned that six handicapped spaces will not be enough with over two hundred regular parking spaces.

Mr. Gay said that can be added at a later date as there are more than enough parking spaces. Also it will be like a valet where you come to the front of the building and then your car is stored by an attendant.

Commissioner Kelley asked that there be at least twelve handicap parking spaces included with the building of the facility.

City Attorney Norris-Weeks said that can be included with the next item as it speaks to the development agreement.

There being no further discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes

Mayor Pigatt	Not Present

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT REQUEST BY SHAWN JIVANI C/O MIAMI OPA LOCKA BUSINESS PARK LLC TO CONSTRUCT AN EIGHT STORY MIXED-USE COMMERCIAL/INDUSTRIAL BUILDING ON THE PROPERTY LOCATED AT THE CORNER OF NW 147TH STREET AND NW 22ND AVENUE IDENTIFIED BY FOLIO 08-2122-025-0270 IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

Mr. Gay said this is a standard developer's agreement and both parties are in agreeance.

Commissioner Kelley asked that some sort of job fair is done to encourage residents to apply and gain employment.

Vice Mayor Davis opened the floor for a public hearing.

There being no persons to speak, the floor for public hearing was closed.

It was moved by Commissioner Burke, seconded by Commissioner Kelley to pass the resolution.

There being no further discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING TO CLOSE, VACATE AND ABANDON THE ALLEYS LOCATED BETWEEN THE PARCELS BOUNDED BY SUPERIOR STREET, NW 27TH AVENUE AND OPA-LOCKA BOULEVARD PURSUANT TO ORDINANCE 14-02, FOR THE CONSTRUCTION OF A RETAIL CENTER ON THE PROPERTIES IDENTIFIED BY FOLIOS: 08-2121-007-2650, 08-2121-007-2660, 08-2121-007-2670, 08-2121-007-2680, 08-2121-007-2690, 08-2121-013-2010 AND 08-2121-013-2020 AS INDICATED ON THE SITE PLAN IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Vice Mayor Davis opened the floor for a public hearing.

There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Bass, seconded by Vice Mayor Davis to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 3-1 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Not Present

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Vice Mayor Davis, seconded by Commissioner Burke to adjourn the meeting at 10:33 p.m.

MAYOR

ATTEST:

CITY CLERK